

STATE OF NEW YORK

7668--A

Cal. No. 1135

2025-2026 Regular Sessions

IN SENATE

April 28, 2025

Introduced by Sen. FERNANDEZ -- read twice and ordered printed, and when printed to be committed to the Committee on Consumer Protection -- reported favorably from said committee, ordered to first and second report, amended on second report, ordered to a third reading, and to be reprinted as amended, retaining its place in the order of third reading

AN ACT to amend the general business law, in relation to prohibiting the sale of xylazine above a certain weight

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The general business law is amended by adding a new section
2 392-k to read as follows:

3 § 392-k. Sale of xylazine. 1. For purposes of this section, the term
4 "xylazine" shall mean a pharmaceutical drug used for sedation, anes-
5 thesia, muscle relaxation, and analgesia in animals such as horses,
6 cattle, and other non-human mammals.

7 2. The provisions of this section shall apply only to the sale, offer
8 for sale, delivery, or distribution of xylazine in quantities of fifty
9 grams or more per occurrence.

10 3. No corporation, partnership, limited liability company, firm,
11 online platform, or any other business entity doing business within this
12 state shall knowingly sell, offer for sale, or deliver fifty grams or
13 more of xylazine to individuals without proof of its intended use for
14 institutional, veterinary, or scientific purposes.

15 4. No corporation, partnership, limited liability company, firm,
16 online platform, or other business entity doing business within this
17 state shall knowingly sell, offer for sale, or deliver fifty grams or
18 more of xylazine to individuals under the age of twenty-one.

19 5. Any corporation, partnership, limited liability company, firm,
20 online platform, or other business entity doing business within this
21 state which knowingly sells, offers for sale, or distributes fifty grams

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 or more of xylazine, shall require and retain sales records, proof of
2 age, and proof of use from all purchasers.

3 6. Any corporation, partnership, limited liability company, firm,
4 online platform, or other business entity doing business within this
5 state that violates the provisions of this section by knowingly selling,
6 offering for sale, or delivering fifty grams or more of xylazine shall
7 be subject to a civil penalty of not more than three thousand dollars
8 for a first violation, and sixty-five hundred dollars for each subse-
9 quent violation, recoverable in an action by the attorney general of the
10 state of New York. All funds collected or received by the state from
11 civil penalties imposed under this section shall be deposited in the New
12 York state drug treatment and public education fund established pursuant
13 to section ninety-nine-jj of the state finance law.

14 § 2. This act shall take effect on the ninetieth day after it shall
15 have become a law.